

TENTATIVE RULING FOR JULY 7, 2026

Department R12 - Judge Kory Mathewson

Trico Business Center, LP v. Nextira LLC, et al – CIVRS2502381

Motion: Motion to Set Aside

Movant: Defendant Todd A. Black

Respondent: Plaintiff Trico Business Center, L.P.

RULING: Motion to Set Aside is DENIED because it was not brought within the six-month statutory period for discretionary relief.

Plaintiff Trico - to provide Order(s) and give Notice.

On April 7, 2025, Plaintiff Trico Business Center, L.P. filed a Judicial Council form complaint against Defendants Nextira LLC and Todd A. Black alleging a single cause of action for breach of contract.

On May 8, 2025, Plaintiff filed a Proof of Service of Summons showing Nextira's corporate agent was personally served on May 7, 2025, by Maurice Robinson, a registered process server.

On June 16, 2025, Plaintiff filed a Proof of Service of Summons showing Blake was personally served on June 6, 2025, by registered process server Carollyn Cerwonka.

On July 22, 2025, a default was entered against Black and Nextira.

On June 15, 2026, over 10 months after the entry of default, Black filed the motion now before the Court seeking to set aside the default under Code of Civil Procedure section 473, subdivision (b). Plaintiff opposes.¹ Black did not reply.

Analysis

In determination whether to grant relief, the Court is guided by the fundamental principle that the law strongly favors trials on the merits and any doubts about setting aside a default must be resolved in favor of the party seeking relief. (*Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 696.) Further, when the defaulting party reasonably moves for relief, and the opposing party has or will suffer little prejudice, very slight evidence is required to justify setting aside a default. (*Shamblin v. Brattain* (1988) 44 Cal.3d 474, 478.)

Black seeks to set aside the entry of default is through the discretionary relief provided under Code of Civil Procedure section 473, subdivision (b). Black argues the default was entered due to his mistake, inadvertence, surprise, or excusable neglect because at the time he was dealing with substantial financial, business, and legal issues resulting from the failure of his business. (Black Decl. ¶ 3.) He contends he did not understand that the default had been entered because when he reviewed the Register of Actions, he saw that the clerk had rejected Plaintiff's default judgment submission. (Black Decl. ¶ 4-5.)

¹Plaintiff argues that Defendant Black did not timely serve his moving papers in compliance with Code of Civil Procedure section 1005, subdivision (b), and Black did not file a proof of service with his motion. However, Plaintiff opposes Black's motion on the merits, therefore any issue with service is deemed waived. (*Clark v. Stabond Corp.* (1987) Cal.App.3d 50, 58-59.)

Black's motion is denied. Blake's default was entered on July 22, 2025, and his motion was not filed until June 15, 2026; more than 10 months later. With respect to discretionary relief under section 473, subdivision (b), the six-month time limit runs from the date of entry of default. (*Manson, Iver & York v. Black* (2009) 176 Cal.App.4th 36, 42.) "The six-month time limit for granting statutory relief is jurisdictional and the court may not consider a motion for relief made after that period has elapsed." (*Ibid.*) An application for relief requires both filing a notice of motion and service on the adverse party within the six-month period. (*Arambula v. Union Carbide Corp.* (2005) 128 Cal.App.4th 333, 340-341.)

In seeking to obtain relief from the six-month deadline, Black cites *Rappleyea v. Campbell* (1994) 8 Cal.4th 975 (*Rappleyea*), arguing that the Court may grant him "equitable relief" from the six-month deadline if his default was entered due to "procedural misunderstandings."

Plaintiff asserts that *Rappleyea* does not create a broad exception to the six-month deadline under section 473 and its facts are distinguishable. The decision in *Rappleyea* is addressed to the Court's inherent authority to vacate a default or default judgment on equitable grounds, such as extrinsic fraud or extrinsic mistake. (*Rappleyea, supra*, 8 Cal.4th at p. 981.) The Court agrees.

Extrinsic fraud usually arises when a party is denied a fair adversary hearing because he has been "deliberately kept in ignorance of the action or proceeding, or in some other way fraudulently prevented from presenting his claim or defense." (*Manson, Iver & York v. Black* (2009) 176 Cal. App. 4th 36, 47.) Equitable relief is appropriate where a party has been induced not to appear or contest the action by misrepresentation of fact or false promises to dismiss or to compromise the claim.

Extrinsic mistake occurs "when circumstances extrinsic to the litigation have unfairly cost a party a hearing on the merits." (*Ibid.*) "In contrast with extrinsic fraud, extrinsic mistake exists when the ground of relief is not so much the fraud or other misconduct of one of the parties as it is the excusable neglect of the defaulting party to appear and present his claim or defense. If that neglect results in an unjust judgment, without a fair adversary hearing, the basis for equitable relief on the ground of extrinsic mistake is present." (*Ibid.*)

Even where extrinsic fraud or mistake are shown, such relief requires additional elements be met such as the party in default showing: (1) a meritorious defense; (2) a satisfactory excuse for not presenting a defense to the original action; and (3) diligence in seeking to set aside the default once it was discovered. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 981-983.)

Black's motion is not noticed as being brought under the Court's inherent equitable authority to set aside a default based on extrinsic fraud or extrinsic mistake and Blake does not offer sufficient argument or evidence in support of such relief. Therefore, Black's motion to set aside the entry of default is denied.

Dated: July 7, 2026

Judge Kory Mathewson